

Eastern Federal Lands Highway Division NEPA Categorical Exclusion Form

Project Number: VI ERFO FW SOP 2022-1(1) **Date:** 4/1/2026

Project Name: Sandy Point National Wildlife Refuge, Wooden Trail Bridge Replacement

Location: Sandy Point National Wildlife Refuge
St. Croix, U.S. Virgin Islands

CE Category 23 CFR 771.117(c)(23): Federally funded projects
(i) That receive less than \$5,000,000 [now \$7,139,157 as adjusted for inflation] (ii) With a total estimated cost of not more than \$30,000,000 [now \$41,604,249 as adjusted for inflation...]

See [23 CFR 771.117](#) for full description of CE categories, including additional requirements when applying (c)26-28.

Project Description

The Eastern Federal Lands Highway Division of the Federal Highway Administration (FHWA), in cooperation with the U.S. Fish and Wildlife Service (USFWS), is proposing to replace the West Beach Trail Foot Bridge in Sandy Point National Wildlife Refuge located on the island of St. Croix, U.S. Virgin Islands. The purpose of the proposed project is to maintain trail access to West Beach and Sandy Point Beach while protecting the surrounding environment.

The existing foot bridge suffered substantial damage due to storm surge activity associated with Hurricane Fiona in September 2022. A temporary structure was installed by the Refuge to facilitate trail user access and protect the surrounding environment from foot traffic. The proposed project will remove the existing temporary structure and install a new composite bridge structure on helical piles along the same alignment.

Environmental Commitments and Mitigation Measures

- Cutting of mangroves is prohibited. Contact Refuge staff if a mangrove is in conflict with construction operations.
- Do not operate construction equipment in wetlands.

Summary of Section 7 of the Endangered Species Act Compliance

The USFWS Information for Planning and Consultation (IPaC) website was used to obtain an official species list on March 4, 2026. One federally listed plant species, *Agave eggersiana*, and

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one critical habitat area were identified as having the potential to occur within or immediately adjacent to the project area.

The USFWS, acting as the lead federal agency for compliance under Section 7 of the Endangered Species Act, has determined that the proposed project would have **no effect** on individuals of *Agave eggersiana*, as none are located within or immediately adjacent to the project action area. In addition, USFWS has determined that the proposed project will have no effect on designated critical habitat for the Leatherback Sea Turtle (*Dermochelys coriacea*) as no beach habitat is within the project action area.

Summary of Section 106 of the National Historic Preservation Act Compliance

The USFWS, acting as the lead federal agency for compliance under Section 106 of the National Historic Preservation Act, determined that no historic properties would be affected by the proposed project as no cultural resources were identified in a previous 2008 cultural resource survey that included the project area of potential effect. Documentation from the USFWS Regional Historic Preservation Officer is attached.

Additional Agency Coordination and Compliance

The USFWS, acting as the lead federal agency for compliance under the National Environmental Policy Act (NEPA), Categorically Excluded the proposed project from requiring the preparation of either an Environmental Assessment or an Environmental Impact Statement in an Environmental Action Statement signed on February 27, 2026.

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Categorical Exclusion Recommendation:

On the basis of the environmental impact information in the statutory compliance file, with which I am familiar, I believe the project should be categorically excluded from further NEPA analysis.

Kim Campo-Allen
Environmental Protection Specialist
Eastern Federal Lands Highway Division
Federal Highway Administration

4/1/2026

Date

Categorical Exclusion Determination:

On the basis of the environmental impact information in the statutory compliance file, with which I am familiar, I am categorically excluding the described project from further NEPA analysis. The project meets the 23 CFR 771.117(a) definition of a categorical exclusion. No unusual circumstances per 23 CFR 771.117(b) apply.

Kevin S. Rose
Environmental Team Leader
Eastern Federal Lands Highway Division
Federal Highway Administration

4/1/2026

Date

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Appendix A: Environmental Checklist

Section 7 of the Endangered Species Act: • Are Federally listed species potentially present in the study area? ☒ Yes, see Notesⁱ ☐ No - If Yes, effects determination: ☒ No Effect ☐ May Affect, Not Likely to Adversely Affect ☐ May Affect, Likely to Adversely Affect
Section 106 of the National Historic Preservation Act: • Are historic properties known to be present in the study area? ☐ Yes ☒ No - If Yes, will they be impacted by the project? ☐ Yes ☐ No • Will previously undisturbed ground be disturbed? ☐ Yes ☒ No • Effects determination: ☒ No Historic Properties Affected ☐ No Adverse Effect ☐ Adverse Effect, MOA Executed • Was tribal consultation completed? ☐ Yes ☒ No
Water and Wetlands: • Section 404 of the Clean Water Act Are impacts to Waters of the US anticipated? ☒ Yes ☐ No - If Yes, approval anticipated: ☒ Nationwide Permit (NWP) ☐ Regional General Permit ☐ Individual Permit • Section 401 of the Clean Water Act ☐ NWP certified by State ☐ Individual Certification • Section 402 of the Clean Water Act (National Pollutant Discharge Elimination System) Will the land disturbance threshold likely be exceeded to require a permit and SWPPP? ☐ Yes ☒ No • Is post-construction stormwater management review/approval anticipated? ☐ Yes ☒ No • ☒ Project is consistent with Executive Order 11990, Protection of Wetlands
Floodplains: • Is the project in a FEMA floodplain? ☐ Yes ☐ No ☐ Floodplain not mapped • ☐ Project is consistent with Executive Order 11988, Floodplain Management
Section 4(f) of the USDOT Act: • Does the project meet the Section 4(f) exemption for Federal lands transportation facilities under Section 1119(c)(2) of MAP-21, 23 U.S.C. 138(a)? ☒ Yes ☐ No • Is there a use of a Section 4(f) property in the study area? ☐ Yes ☒ No - If Yes, De Minimis Finding: ☐ Programmatic: ☐ Individual 4(f): ☐
Section 6(f) of the Land and Water Conservation Fund: • Was the property purchased with grant funds from the Land and Water Conservation Fund?

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☐ Yes ☒ No If Yes, was documentation of approval from National Park Service Director received for the conversion or replacement of 6(f) property? ☐ Yes ☐ No
Coastal Zone Management Act of 1972:
- Is the project in a Coastal Zone? ☒ Yes ☐ No - If yes, will a Federal Consistency Review be completed? ☒ Yes ☐ No
Right of Way:
- Is the project completely within the transportation facility's right-of-way? ☒ Yes ☐ No - If no, will the project require relocations or easements? ☐ Yes ☐ No
Hazardous Waste and Materials:
- Are hazardous materials or contamination exceeding regulatory thresholds (as set by U.S. EPA, County Environmental Health, etc.) present? ☐ Yes ☒ No - If Yes, is the nature and extent of the hazardous materials or contamination fully known? ☐ Yes ☐ No, plan for securing information provided in Notes
Section 7(a) of the Wild and Scenic Rivers Act:
Are there Wild and Scenic Rivers? ☐ Yes ☒ No ☐ Eligible If Yes, has review by the river-administering agency been completed? ☐ Yes ☐ No
Clean Air Act:
Is the project in a non-attainment area? ☐ Yes ☒ No If Yes, is the project on the Transportation Improvement Program (TIP)/State Implementation Plan (SIP)? ☐ Yes ☐ No
Highway Traffic and Construction Noise Regulations:
☐ The proposed project is a Type I project (highway on a new location, substantial horizontal or vertical alteration, new through or auxiliary lanes). Noise analysis is required. ☐ The proposed project is a Type II project (retrofit for noise abatement). ☒ The proposed project is a Type III project (noise analysis not required). ☐ Does not apply.
Farmland Protection Policy Act for Highway Projects:
Does the project displace, require acquisition of, or require an easement from farmland? ☐ Yes ☒ No
Does the project affect any other resources not listed above? Explain below and list anticipated permits:
The Construction Contractor will obtain all necessary environmental permits required to construct the project
including submitting the project to the Virgin Islands Department of Planning and Natural Resources
for Federal Consistency review under the Virgin Islands Coastal Zone Management Program.



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ⁱ Federally listed species per U.S. Fish and Wildlife Service's IPaC:
Agave eggersuana; Leatherback Sea Turtle (*Dermochelys coriacea*) critical habitat.



United States Department of the Interior



FISH AND WILDLIFE SERVICE
Caribbean Ecological Services Field Office
Post Office Box 491
Boqueron, PR 622-0491
Phone: (939) 320-3135 Fax: (787) 851-7440
Email Address: CARIBBEAN_ES@FWS.GOV

In Reply Refer To:

03/04/2026 12:33:26 UTC

Project Code: 2026-0057829

Project Name: Sandy Point NWR Trail Bridge Replacement

Subject: List of threatened and endangered species that may occur in your proposed project location or may be affected by your proposed project

To Whom It May Concern:

THE FOLLOWING SPECIES LIST IS NOT A SECTION 7 CONSULTATION. PLEASE CONTACT OUR OFFICE TO COMPLETE THE CONSULTATION PROCESS

The purpose of the Endangered Species Act (Act) is to provide a means whereby threatened, and endangered species and the ecosystems upon which they depend may be conserved. Under sections 7(a)(1) and 7(a)(2) of the Act and its implementing regulations (50 CFR 402 et seq.), Federal agencies are required to utilize their authorities to carry out programs for the conservation of threatened and endangered species and to determine whether projects may affect those species and/or their designated critical habitat.

Federal agencies are required to "request of the Secretary of Interior information whether any species which is listed or proposed to be listed may be present in the area of a proposed action". The enclosed species list provides information to assist with the U.S. Fish and Wildlife Service (Service) consultation process under section 7 of the Act. However, **the enclosed species list does not complete the required consultation process**. The species list identifies threatened, endangered, proposed and candidate species, as well as proposed and designated critical habitats, that may occur within the boundary of your proposed project and/or may be affected by your proposed project. A discussion between the Federal agency and the Service should include what types of listed species may occur in the proposed action area and what effect the proposed action may have on those species. This process initiates informal consultation.

Once a species list is obtained for the proposed project, an effect determination for endangered and threatened species should be made. The applicant could make an effect determination by using available keys on IPaC for specific species. For species with no determination keys, the applicant should request concurrence from the Service by sending a project package

to caribbean_es@fws.gov. To obtain guidance for completing this process and the minimum requirements for project packages, please visit:

<https://www.fws.gov/sites/default/files/documents/consultation-under-section-7-of-the-endangered-species-act-with-the-caribbean-ecological%20Services-field-office-template-letter.pdf>

When a federal agency, after discussions with the Service, determines that the proposed action is not likely to adversely affect any listed species, or adversely modify any designated critical habitat, and the Service concurs, the informal consultation is complete, and the proposed project moves ahead. If the proposed action is suspected to affect a listed species or modify designated critical habitat, the Federal agency may then prepare a Biological Assessment (B.A.) to assist in its determination of the project's effects on species and their habitat. However, a B.A. is required for construction projects (or other undertakings having similar physical impacts) that are major Federal actions significantly affecting the quality of the human environment as defined in the National Environmental Policy Act (42 U.S.C. 4332(2) (c)). For projects other than major construction activities, the Service suggests that a biological evaluation similar to a B.A. where the agency provides the Service with an evaluation on the likely effects of the action to determine whether the project may affect listed or proposed species and/or designated or proposed critical habitat. Recommended contents of a B.A. are described at 50 CFR 402.12.

If a federal agency determines, based on its B.A. or biological evaluation, that listed species and/or designated critical habitat may be affected by the proposed project, the agency is required to further consult with the Service pursuant to 50 CFR 402. In addition, the Service recommends that candidate species, proposed species, and proposed critical habitat be addressed within the consultation process. More information on the regulations and procedures for section 7 consultation, including the role of permit or license applicants, can be found in the "Endangered Species Consultation Handbook" at:

<https://www.fws.gov/sites/default/files/documents/endangered-species-consultation-handbook.pdf>

New information based on updated surveys, changes in the abundance and distribution of species, changed habitat conditions, or other factors could change this list. Please feel free to contact us if you need more current information or assistance regarding the potential impacts to federally proposed, listed, and candidate species.

This list is provided pursuant to Section 7 of the Endangered Species Act and fulfills the requirement for Federal agencies to "request of the Secretary of the Interior information whether any species which is listed or proposed to be listed may be present in the area of a proposed action". Please use this list to determine whether your project requires consultation and to make your effects determination. For more guidance, use the Guideline for Consultation under Section 7 of the Endangered Species Act with the Caribbean Ecological Services Field Office by clicking [here](#).

This species list is provided by:

Caribbean Ecological Services Field Office

caribbean_es@fws.gov

Post Office Box 491

Boqueron, PR 00622-0491

(786) 244-0081

Attachment(s):

- Official Species List
- USFWS National Wildlife Refuges and Fish Hatcheries
- Bald & Golden Eagles
- Migratory Birds
- Coastal Barriers
- Wetlands

OFFICIAL SPECIES LIST

This list is provided pursuant to Section 7 of the Endangered Species Act, and fulfills the requirement for Federal agencies to "request of the Secretary of the Interior information whether any species which is listed or proposed to be listed may be present in the area of a proposed action".

This species list is provided by:

Caribbean Ecological Services Field Office

Post Office Box 491

Boqueron, PR 622-0491

(939) 320-3135

PROJECT SUMMARY

Project Code: 2026-0057829

Project Name: Sandy Point NWR Trail Bridge Replacement

Project Type: Bridge - Replacement

Project Description: The U.S. Fish and Wildlife Service (Service) proposes to cooperate with the Federal Highway Administration in the replacement of the West Beach Trail Foot Bridge at Sandy Point National Wildlife Refuge. The proposed project will replace the bridge without impacting beach or wetland habitat. The alignment will remain basically the same as the existing alignment. The bridge will be minimally widened (<1') thus minimizing impacts on environmentally sensitive areas. The total bridge length would be approximately 15'.

Project Location:

The approximate location of the project can be viewed in Google Maps: <https://www.google.com/maps/@17.677167500000003,-64.90175505254237,14z>



Counties: St. Croix County, Virgin Islands

ENDANGERED SPECIES ACT SPECIES

There is a total of 1 threatened, endangered, or candidate species on this species list.

Species on this list should be considered in an effects analysis for your project and could include species that exist in another geographic area. For example, certain fish may appear on the species list because a project could affect downstream species.

IPaC does not display listed species or critical habitats under the sole jurisdiction of NOAA Fisheries¹, as USFWS does not have the authority to speak on behalf of NOAA and the Department of Commerce.

See the "Critical habitats" section below for those critical habitats that lie wholly or partially within your project area under this office's jurisdiction. Please contact the designated FWS office if you have questions.

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1. [NOAA Fisheries](#), also known as the National Marine Fisheries Service (NMFS), is an office of the National Oceanic and Atmospheric Administration within the Department of Commerce.

FLOWERING PLANTS

NAME	STATUS
Agave eggersiana	Endangered
There is final critical habitat for this species. Your location does not overlap the critical habitat. Species profile: https://ecos.fws.gov/ecp/species/7039	

CRITICAL HABITATS

There is 1 critical habitat wholly or partially within your project area under this office's jurisdiction.

NAME	STATUS
Leatherback Sea Turtle <i>Dermochelys coriacea</i>	Final
For information on why this critical habitat appears for your project, even though Leatherback Sea Turtle is not on the list of potentially affected species at this location, contact the local field office. https://ecos.fws.gov/ecp/species/1493#crithab	

USFWS NATIONAL WILDLIFE REFUGE LANDS AND FISH HATCHERIES

Any activity proposed on lands managed by the [National Wildlife Refuge](#) system must undergo a 'Compatibility Determination' conducted by the Refuge. Please contact the individual Refuges to discuss any questions or concerns.

The following FWS National Wildlife Refuge Lands and Fish Hatcheries lie fully or partially within your project area:

FACILITY NAME	ACRES
SANDY POINT NATIONAL WILDLIFE REFUGE	517.987
https://www.fws.gov/our-facilities?keywords=%5C%22SANDY+POINT+NATIONAL+WILDLIFE+REFUGE%5C%22	

BALD & GOLDEN EAGLES

Bald and Golden Eagles are protected under the Bald and Golden Eagle Protection Act ² and the Migratory Bird Treaty Act (MBTA) ¹. Any person or organization who plans or conducts activities that may result in impacts to Bald or Golden Eagles, or their habitats, should follow appropriate regulations and consider implementing appropriate avoidance and minimization measures, as described in the various links on this page.

1. The [Bald and Golden Eagle Protection Act](#) of 1940.
2. The [Migratory Birds Treaty Act](#) of 1918.
3. 50 C.F.R. Sec. 10.12 and 16 U.S.C. Sec. 668(a)

Bald and Golden Eagles are protected under the Bald and Golden Eagle Protection Act and the Migratory Bird Treaty Act (MBTA). Any person or organization who plans or conducts activities that may result in impacts to Bald or Golden Eagles, or their nests, should follow appropriate regulations and implement required avoidance and minimization measures, as described in the various links on this page.

The data in this location indicates that no eagles have been observed in this area. This does not mean eagles are not present in your project area, especially if the area is difficult to survey. Please review the 'Steps to Take When No Results Are Returned' section of the Supplemental Information on Migratory Birds and Eagles document to determine if your project is in a poorly surveyed area. If it is, you may need to rely on other resources to determine if eagles may be present (e.g. your local FWS field office, state surveys, your own surveys).

Any person or organization who plans or conducts activities that may result in impacts to bald or golden eagles, or their habitats, should follow appropriate regulations and consider implementing appropriate conservation measures, as described in the links below. Specifically, please review the "Supplemental Information on Migratory Birds and Eagles".

MIGRATORY BIRDS

The Migratory Bird Treaty Act (MBTA) ¹ prohibits the take (including killing, capturing, selling, trading, and transport) of protected migratory bird species without prior authorization by the Department of Interior U.S. Fish and Wildlife Service (Service).

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1. The [Migratory Birds Treaty Act](#) of 1918.
 2. The [Bald and Golden Eagle Protection Act](#) of 1940.
 3. 50 C.F.R. Sec. 10.12 and 16 U.S.C. Sec. 668(a)

THERE ARE NO FWS MIGRATORY BIRDS OF CONCERN WITHIN THE VICINITY OF YOUR PROJECT AREA.

COASTAL BARRIERS

Projects within the [John H. Chafee Coastal Barrier Resources System](#) (CBRS) may be subject to the restrictions on Federal expenditures and financial assistance and the consultation requirements of the Coastal Barrier Resources Act (CBRA) (16 U.S.C. 3501 et seq.). For more information, please contact the local [Ecological Services Field Office](#) or visit the [CBRA Consultations website](#). The CBRA website provides tools such as a flow chart to help determine whether consultation is required and a template to facilitate the consultation process.

OTHERWISE PROTECTED AREA (OPA)

OPAs are denoted with a "P" at the end of the unit number. The only prohibition within OPAs is on Federal flood insurance. **CBRA consultation is not required for projects within OPAs.** However, agencies providing disaster assistance that is contingent upon a requirement to purchase flood insurance after the fact are advised to disclose the OPA designation and information on the restrictions on Federal flood insurance to the recipient prior to the commitments of funds.

UNIT	NAME	TYPE	SYSTEM UNIT ESTABLISHMENT DATE	FLOOD INSURANCE PROHIBITION DATE
VI-11P	Westend Saltpond	OPA	N/A	11/16/1991

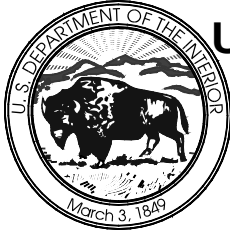
WETLANDS

Impacts to [NWI wetlands](#) and other aquatic habitats may be subject to regulation under Section 404 of the Clean Water Act, or other State/Federal statutes.

For more information please contact the Regulatory Program of the local [U.S. Army Corps of Engineers District](#).

Please note that the NWI data being shown may be out of date. We are currently working to update our NWI data set. We recommend you verify these results with a site visit to determine the actual extent of wetlands on site.

THERE ARE NO WETLANDS WITHIN YOUR PROJECT AREA.



United States Department of the Interior

FISH AND WILDLIFE SERVICE

Office of the Regional Archaeologist

Savannah Coastal Refuges

694 Beech Hill Lane

Hardeeville, South Carolina 29927

CELL (912) 257-5434

email: richard_kanaski@fws.gov

haley_messer@fws.gov Jennifer_grover@fws.gov



MEMORANDUM FOR RECORD

To: Tommy Eglund, Regional Transportation Coordinator; Claudia Lombard, Refuge Manager

From: Haley Messer, Archaeologist

Subject: Section 106 Review of Proposed West Beach Foot Bridge Replacement, Sandy Point National Wildlife Refuge

Date: March 31, 2026

Project Description

The boardwalk structure providing access to the beach at Sandy Point National Wildlife Refuge was heavily impacted as a result of Hurricane Fiona. The U.S. Fish and Wildlife Service is working with Federal Highway Administration to propose an in-kind replacement of the structure. The location of the project area is 17.677179, -64.901807 (Figure 1).

This is a project area where the land is seasonally inundated with water. The platform access will ensure the ability for the station to maintain public access to the beach. The structure is being replaced in-kind during the dry season to limit impacts and wood piles are being replaced with helical structures. The structure being replaced is approximately 10 years old. The dimensions of the boardwalk are 25'x4', and the replacement will stay within the same footprint. The West Beach Parking area will be used as a staging area for this project.

Cultural Resources Review

A cultural resources survey was conducted by New South Associates in 2008 at various project locations at Sandy Point NWR. The path of the footbridge was subject to a shovel test survey, and no cultural resources were identified (New South Associates 2008)(Figure 2). The proposed in-kind replacement of the footbridge will have no potential to affect cultural resources as no cultural resources are present in the area of potential effect. No further consultation under Section 106 of the National Historic Preservation Act is required.



Figure 1. Project Area

Detailed Map of Area D



Source: 2004 Aerial Photograph

Figure 2. Snapshot of New South Associates 2008 report showing survey location.

References Cited

New South Associates

2008 Technical Report #1635. Archaeological Testing of Proposed Road and Parking Improvements, Sandy Point National Wildlife Refuge, St. Croix, U.S. Virgin Islands. Contract DTFH71-08-Q-0020